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ARTICLE

Neoliberalism, Governmentality, and Ethics

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ABSTRACT: This paper illustrates the relevance of Foucault's analysis of neoliberal governance for a critical understanding of recent transformations in individual and social life in the United States, particularly in terms of how the realms of the public and the private and the personal and the political are understood and practiced. The central aim of neoliberal governmentality ("the conduct of conduct") is the strategic creation of social conditions that encourage and necessitate the production of *Homo economicus*, a historically specific form of subjectivity constituted as a free and autonomous "atom" of self-interest. The neoliberal subject is an individual who is morally responsible for navigating the social realm using rational choice and cost-benefit calculations grounded on market-based principles to the exclusion of all other ethical values and social interests. While the more traditional forms of domination and exploitation characteristic of sovereign and disciplinary forms of power remain evident in our "globalized" world, the effects of subjectification produced at the level of everyday life through the neoliberal "conduct of conduct" recommend that we recognize and invent new forms of critique and ethical subjectivation that constitute resistance to its specific dangers.

Key words: Foucault, neoliberalism, governmentality, biopolitics, *homo economicus*, genealogy, ethics, critique.

Introduction

In his 1978-1979 course lectures at the *Collège de France*, *The Birth of Biopolitics*,¹ Michel Foucault offered what is today recognizable as a remarkably prescient analysis of neoliberalism. In the thirty years since he gave these lectures their pertinence and

value for a critical understanding of contemporary forms of political governance in the United States have grown. As I illustrate below, everyday experiences reflect a neoliberal *ethos*² operative within almost every aspect of our individual and social lives with consequences that are dire for many and dangerous for most if not all of us. Indeed the central aim of neoliberal governmentality³ is the strategic production of social conditions conducive to the constitution of *Homo economicus*, a specific form of subjectivity with historical roots in traditional liberalism. However, whereas liberalism posits "economic man" as a "man of exchange", neoliberalism strives to ensure that individuals are compelled to assume market-based values in *all* of their judgments and practices in order to amass sufficient quantities of "human capital" and thereby become "entrepreneurs of themselves". Neoliberal *Homo economicus* is a free and autonomous "atom" of self-interest who is fully responsible for navigating the social realm using rational choice and cost-benefit calculation *to the express exclusion* of all other values and interests. Those who fail to thrive under such social conditions have no one and nothing to blame but themselves. It is here that we can recognize the vital importance of the links between Foucault's analyses of governmentality begun in the late 1970's and his interest in technologies of the self and ethical self-fashioning, which he pursued until the time of his death in 1984. His analyses of "government" or "the conduct of conduct" bring together the government of others (subjectification) and the government of one's self (subjectivation); on the one hand, the biopolitical governance of populations and, on the other, the work that individuals perform upon themselves in order to become certain kinds of subjects. While the more traditional forms of domination and exploitation characteristic of sovereign and disciplinary forms of power remain evident in our "globalized" world, the effects of subjectification produced at the level of everyday life through the specifically neoliberal "conduct of conduct" recommend that we recognize and invent commensurate forms of critique, "counter-conduct" and ethical subjectivation that constitute resistance to its dangers.⁴

² Andrew Barry, Thomas Osborne, and Nikolas Rose have observed that for Foucault liberalism (and, by extension, neoliberalism) indicate something like an *ethos* of government rather than a specific historical moment or single doctrine. See their introduction to *Foucault and Political Reason: Liberalism, Neo-liberalism and Rationalities of Government*, edited by Andrew Barry, Thomas Osborne, and Nikolas Rose (Chicago, IL: The University of Chicago Press, 1996), 8.

³ Foucault defines "governmentality" as an apparatus of administrative power "that has the population as its target, political economy as its major form of knowledge, and apparatuses of security as its essential technical instrument." See Michel Foucault, *Security, Territory, Population: Lectures at the Collège de France, 1977-1978*, translated by Graham Burchell, edited by Arnold I. Davidson (New York: Palgrave Macmillan, 2007), 108-9. Henceforth, *STP*, with page numbers given in the text.

⁴ Throughout this paper I will follow the distinction made by Alan Milchman and Alan

¹ Michel Foucault, *The Birth of Biopolitics: Lectures at the Collège de France, 1978-1979*, translated by Graham Burchell, edited by Arnold I. Davidson (New York: Palgrave Macmillan, 2008). Henceforth, *BB*, with page numbers given in the text.

I. Neoliberalism as Everyday Experience

One of the significant developments in contemporary life that might fall under the heading of “neoliberalism” can be recognized through the various ways that the traditional distinctions between the public and the private on the one hand, and the political and the personal on the other have been gradually blurred, reversed, or removed altogether. The exposure of formerly private and personal realms of life has occurred not only through the more striking examples of growing government and corporate surveillance (think of the telecoms and the warrantless monitoring of electronic communications paid for with taxpayer dollars or the growing use of human implantable radio-frequency identification [RFID] microchips), but, more subtly and significantly, the extent to which activities of production and consumption typically practiced in public spaces are increasingly taking place in the home, a space once exclusively reserved for leisure time and housework. It has become more and more common to find such activities as telecommuting, telemarketing, and shopping via the Internet or cable television taking place within the home. Nearly ubiquitous technologies such as the telephone, home computers with worldwide web access, pagers, mobile phones, GPS and other wireless devices have rendered private space and personal time accessible to the demands of business and, increasingly, the interests of government. To put it simply, it is no longer true, as Marx once claimed, that the worker “is at home when he is not working, and when he is working he is not at home.”⁵ Reality television, social networking sites, personal webcams and confessional blogging have all contributed toward exposing the private realm in ways unforeseen by the well-known feminist adage from the 1960’s: “the personal is political”.

Within this formerly public realm we now find that private interests or public/private amalgams have gained greater control and influence. In major urban areas Business Improvement Districts (BIDs) have appropriated many traditional

governing functions from financially strapped municipalities including taxation, sanitation, and policing. For years the U.S. federal government has given away traditional public goods such as parklands, water, and the airways to profit-making businesses, often in exchange for shallow and unfulfilled promises to serve the public interest. Many formerly public or government institutions such as hospitals, schools, and prisons are now managed privately as for-profit corporations as increasing numbers of people go without healthcare, education levels drop, and prison populations increase. An ongoing effort has been made to further privatize if not eliminate traditional social goods such as healthcare, welfare, and social security. In addition, problems once recognized as social ills have been shifted to the personal realm: poverty, environmental degradation, unemployment, homelessness, racism, sexism, and heterosexism: all have been reinterpreted as primarily private matters to be dealt with through voluntary charity, the invisible hand of the market, by cultivating personal “sensitivity” towards others or improving one’s own self-esteem. Corporations, churches, universities and other institutions have made it part of their mission to organize the mandatory training of employees in these and other areas of personal development and self-management. Just as illness and disease are more often addressed in the mainstream media as a problem of revenue loss for business than as an effect of poor environmental or worker safety regulations, corporations have stepped up the practice of promoting full worker responsibility for their own health and welfare, offering incentives to employees for their participation in fitness training, lifestyle management and diet programs. We can also find a sustained expansion of “self-help” and “personal power” technologies that range from the old “think and grow rich” school to new techniques promising greater control in the self-management of everything from time to anger.⁶ These and many other examples demonstrate the extent to which so much that was once understood as social and political has been re-positioned within the domain of self-governance, often through techniques imposed by private institutions such as schools and businesses.

On a broader scale, there is clear evidence that government policymaking has increasingly fallen under the influence of private corporate and industry interests, for whom the next quarter’s bottom line routinely trumps any concern for the long term common or public good. Transnational organizations such as the World Bank, International Monetary Fund, and the World Trade Organization commonly use their global reach in order to dictate what are often austere social policies through “Structural Adjustment Programs” (SAPs), practices that have been linked to the ongoing expansion of slum populations worldwide.⁷ While the various discourses of “ownership” and the like have promoted the populist ideals of choice, freedom, autonomy and individualism, the reality is that individuals worldwide are more and more subject to the frequently harsh, unpredictable, and unforgiving demands of

Rosenberg between 1) “subjectification” (*assujettissement*) or the ways that *others* are governed and objectified into subjects through processes of power/knowledge (including but not limited to subjugation and subjection since a subject can have autonomy and power relations can be resisted and reversed), and 2) “subjectivation” (*subjectivation*) or the ways that individuals govern and fashion *themselves* into subjects on the basis of what they take to be the truth. Subjectivation can take either the form of self-objectification in accord with processes of subjectification or it can take the form of a subjectivation of a true discourse produced through practices of freedom in resistance to prevailing apparatuses of power/knowledge. See Alan Milchman and Alan Rosenberg, *“The Final Foucault: Government of Others and Government of Oneself”* (Cambridge: Cambridge Scholars Publishing, forthcoming 2008). Henceforth, FF.

⁵ Karl Marx, “Estranged Labor,” in *The Economic & Philosophic Manuscripts of 1844*, edited by Dirk J. Struik (New York: International Publishers, 1964), 110.

⁶ See Binkley, this volume.

⁷ See Mike Davis, *Planet of Slums* (New York: Verso, 2006).

market forces and the kinds of impersonal judgments that evaluate them in terms of a cost-benefit calculus of economic risk, financial burden, productivity, efficiency, and expedience. The recent collapse of the U.S. housing market, the rising costs of fuel and food, and record-breaking increases in unemployment rates perhaps illustrate, not the failure of what sometimes has been called the "ownership society", but rather its success in instituting a moralizing principle of punishing those who haven't amassed sufficient "human capital". Examples such as these do suggest that, to at least some extent, the neoliberal strategy of infusing market values into every aspect of social life and shifting responsibility onto individuals has succeeded.

II. Neoliberalism As Governmentality

In his 1978-79 course lectures, Foucault analyzed liberalism as a historical form of biopolitical governmentality, that is, as a form of political rationality concerned with the government of populations and the conduct of individual conduct in accord with "the internal rule of maximum economy" (BB, 318). His genealogical analysis of liberalism led him to examine the West German Ordo-liberalism of the period from 1942 to 1962 and the American neoliberalism of the Chicago School, which developed later on. Foucault noted that both forms of neoliberalism were conceived from the very beginning as interventionist and critical responses to specific forms of governmentality. For the West Germans, who were faced with the daunting task of building a new state from scratch it constituted a critique of the excessive state power of Nazism and for the Americans it was a reaction to the overextended New Deal welfare state and its interference in market mechanisms. In this regard both schools were linked from the start to classical liberalism insofar as they were forms of "critical governmental reason," or political rationality that theorized government as immanently self-limiting by virtue of its primary responsibility for supporting the economy. Whereas the pre-modern state had utilized the economy to serve its own ends, the emergence of political economy within the liberal reason of state reversed the traditional relationship between government and economy (BB, 12-3). What fascinated Foucault about the American neoliberals in particular, and distinguished them from the West German Ordo-liberals, was their unprecedented expansion of the economic enterprise form to the entire social realm. The Americans sought "to extend the rationality of the market, the schemes of analysis it offers and the decision-making criteria it suggests, to domains which are not exclusively or not primarily economic: the family and the birth rate, for example, or delinquency and penal policy" (BB, 323). Government is also reconceived as an enterprise to be organized, operated, and systematically critiqued according to an "economic positivism" (BB, 247). Within the reason of state of American neoliberalism, the role of government is defined by its obligations to foster competition through the installation of market-based mechanisms for constraining and conditioning the actions of individuals, institutions, and

the population as a whole. In fact, the government's ability to operate under the cost-benefit rule of maximum economy while simultaneously "hard selling" this "way of doing things" becomes its one and only criterion of legitimacy (BB, 318).

Another significant feature of neoliberalism is its explicit acknowledgment of the fact that neither the market nor economic competition between individuals is a natural reality with self-evident or intrinsic laws. Rather, the rationality of neoliberalism consists of values and principles that must be actively instituted, maintained, reassessed and, if need be, reinserted at all levels of society (BB, 120). While neoliberal governmentality seeks to minimize state power as much as possible, it also recognizes that the market can only be kept viable through active governmental and legal support. Likewise, it explicitly acknowledges that competition between individuals can only be fostered through social mechanisms that are exclusively encoded, ordered and reassessed by market values. The point here is that within the rationality of neoliberal governmentality⁸ it is clear that *Homo economicus* or "economic man" is not a natural being with predictable forms of conduct and ways of behaving, but is instead a form of subjectivity that must be brought into being and maintained through social mechanisms of subjectification. As I will illustrate below, "economic man" is a subject that must be produced by way of forms of knowledge and relations of power aimed at encouraging and reinforcing individual practices of subjectivation.

III. *Homo Economicus* as Everyday Experience

Governing people is not a way to force people to do what the governor wants; it is always a versatile equilibrium, with complementarity and conflicts between techniques which assure coercion and processes through which the self is constructed or modified by himself.⁹

Foucault's analysis in *The Birth of Biopolitics* notes that one of the concerns of the neoliberals was with identifying the reasoning involved in leading an individual to dedicate his or her life's finite capacities and limited resources toward pursuing one goal or agenda rather than another. Referring to the work of the economist Gary Becker, Foucault discussed the neoliberal theories of human capital and criminality, both of which focus on economic principles of rationality for determining decision-making processes and action. For example, instead of interpreting the wage earner as an individual who is obliged to sell his or her labor power as an abstract commodity, neoliberalism describes wages as income earned from the expenditure of "hu-

⁸ Here and for the remainder of this article my discussion of "neoliberalism" will refer primarily to the historical and contemporary American variant.

⁹ Michel Foucault, "About the Beginning of the Hermeneutics of the Self: Two Lectures at Dartmouth," *Political Theory*, 21, 2 (May 1993), 203-4.

man capital”, which consists of both an individual’s innate genetic qualities as well as his or her acquired skills, abilities, tastes, and knowledge. This accumulated “human capital” is interpreted as the result of prior and ongoing investments in goods like education, nutrition, and training, as well as love and affection. In this reconstruction of the wage earner, workers are no longer recognized as dependent on an employer but instead are fashioned as free and autonomous entrepreneurs fully responsible for their presumably rational self-investment decisions. Foucault notes that this definition of economics gives itself the task of analyzing a form of human behavior in terms of its internal rationality. Economics is no longer viewed as the analysis of processes but rather, as the analysis of “the strategic programming of individuals’ activity” (BB, 223). For Pierre Bourdieu, the institution of these new forms of entrepreneurial activity has meant that levels of competition traditionally characteristic of relations between businesses and corporations are now deeply entrenched at the level of the workforce itself:

Competition is extended to individuals themselves, through the individualization of the wage relationship: establishment of individual performance objectives, individual performance evaluations, permanent evaluation, individual salary increases or granting of bonuses as a function of competence and of individual merit; individualized career paths; strategies of ‘delegating responsibility’ tending to ensure the self-exploitation of staff who, simple wage laborers in relations of strong hierarchical dependence, are at the same time held responsible for their sales, their products, their branch, their store, etc. as though they were independent contractors. This pressure toward ‘self-control’ extends workers’ ‘involvement’ according to the techniques of ‘participative management’ considerably beyond management level. All of these are techniques of rational domination that impose over-involvement in work (and not only among management) and work under emergency or high-stress conditions. And they converge to weaken or abolish collective standards or solidarities.¹⁰

Within the apparatus (*dispositif*)¹¹ of neoliberalism every individual is considered to be “equally unequal”, as Foucault put it. Exploitation, domination, and every other form of social inequality is rendered invisible as social phenomena to the extent that each individual’s social condition is judged as nothing other than the effect of his or her own choices and investments. As Wendy Brown has pointed out, *Homo economicus* is constructed, not as a citizen who obeys rules, pursues common goods, and addresses problems it shares with others, but as a rational and calculating entrepreneur

who is not only capable of, but also responsible for caring for him or herself.¹² Brown points out that this has the effect of “depoliticizing social and economic powers” as well as reducing “political citizenship to an unprecedented degree of passivity and political complacency.” She writes:

The model neoliberal citizen is one who strategizes for her- or himself among various social, political, and economic options, not one who strives with others to alter or organize these options. A fully realized neoliberal citizenry would be the opposite of public-minded; indeed, it would barely exist as a public. The body politic ceases to be a body but is rather a group of individual entrepreneurs and consumers . . . (E, 43).

Within this practically Hobbesian (anti-)social landscape the “responsibility” of individuals constitutes a form of market morality¹³ understood as the maximization of economy through the autonomous rational deliberation of costs and benefits followed by freely chosen practices. Neoliberal subjects are constituted as thoroughly responsible for themselves and themselves alone because they are subjectified as thoroughly autonomous and free. An individual’s failure to engage in the requisite processes of subjectivation, or what neoliberalism refers to as a “mismanaged life” (E, 42), is consequently due to the moral failure of that individual. Neoliberal rationality allows for the avoidance of any kind of collective, structural, or governmental responsibility for such a life even as examples of it have been on the rise for a number of decades. Instead, impoverished populations, when recognized at all, are often treated as “opportunities” for investment.¹⁴

On June 15, 2006 the UN released a report, “State of the World’s Cities 2006/7,” on the alarming worldwide growth of urban slum dwellers.¹⁵ The report

¹⁰ Pierre Bourdieu, “The Essence of Neoliberalism,” translated by Jeremy J. Shapiro, *Le Monde diplomatique* (December 1998), <http://mondediplo.com/1998/12/08bourdieu> (accessed April 30, 2008).

¹¹ Henceforth I will refer to this or that “apparatus,” insofar as I read Foucault’s term *dispositif* to indicate the set-ups or apparatuses of knowledge-power-subjectivity that condition, shape, and constrain our everyday actuality.

¹² See Wendy Brown, *Edgework: Critical Essays On Knowledge and Politics* (Princeton, NJ: Princeton University Press, 2005). Henceforth, *E*, with page numbers given in the text.

¹³ I use the term “morality” here in the formal sense used by Foucault. Generally speaking it is the code (or codes) that determines which acts are permitted or forbidden and the values attributed to those acts. These codes inform the ethical relationship one has to one’s self. See Michel Foucault, “On the Genealogy of Ethics: An Overview of Work in Progress,” in Hubert L. Dreyfus and Paul Rabinow, *Michel Foucault: Beyond Structuralism and Hermeneutics* (Chicago, IL: University of Chicago Press, 1983), 237-8. Henceforth, *OGE*, with page numbers given in the text.

¹⁴ We see this, for example, in the high interest rates increasingly attached to micro-credit issued to poor “entrepreneurs” in the developing world. Viewing poverty as an investment opportunity also frequently leads to other problems such as forced evictions when lands are appropriated for commercial development. Examples of this can be found everywhere from New Orleans to Nairobi.

¹⁵ The full report “State of the World’s Cities 2006/7” press release, and other related docu-

estimated that by the year 2007 the majority of human beings would, for the first time ever, be living in cities. One third of those city dwellers, that is one billion of them, will live in slums. The report also projected that the growth in slum populations will amount to twenty-seven million people per year—an increase that will continue for at least the next two decades. In 1996 one hundred and seventy-six leaders from around the world met at the World Food Summit and pledged to cut the number of undernourished and starving people in half within twenty years.¹⁶ Over a decade later, the number of people going hungry around the world has increased by eighteen million, bringing the worldwide total to eight hundred and fifty-two million, with an average of six million children dying of hunger each year. In the United States, there has been a dramatic increase in the number of homeless individuals in the last twenty-five years, attributable mainly to an increase in poverty and a growing shortage of affordable rental housing.¹⁷ Although the nature of homelessness makes it difficult to obtain accurate and timely statistics, it is estimated that an average 3.5 million people experience homelessness annually with the fastest growing segment of this population being families with children. As of 2003 the number of homeless who are children under the age of 18 is nearly 40%. In New York City children constitute nearly half of the homeless population while children and their families make up 75% of the total. And although we sometimes hear of employment figures going up across the United States, so too has the number of working poor and those forced to work multiple jobs without adequate healthcare and other benefits.

The neoliberal approach to dealing with growing poverty, unemployment, and homelessness is not simply to ignore it, but to impose punitive judgments through the moralizing effects of its political rationality. For example, the former Commissioner of the NYC Department of Homeless Services, Linda Gibbs famously vowed to “change the meaning of homelessness” by emphasizing “better management” and “client responsibility.”¹⁸ “My expectation” she stated “is that you can actually manage this in a way that people change their behavior.” Of course, what never factors into this construction of “client responsibility” are any of the structural constraints imposed by the city’s endemic social problems, such as unfair housing practices or the lack of adequate education and employment opportunities. Instead,

one of the Commissioner’s greatest concerns, as she put it, was that “the city has to be careful that people don’t abuse the system.” Another example of punitive subjectification is the criminalization of homelessness. A joint report issued at the beginning of the year in 2006 by the National Coalition for the Homeless and The National Law Center on Homelessness & Poverty described the growing practice of criminalizing the homeless in urban America even while homelessness increases and cities are consistently unable to meet the heightened demand for more shelters. As the report indicates:

An unfortunate trend in cities around the country over the past 25 years has been to turn to the criminal justice system to respond to people living in public spaces. This trend includes measures that target homeless people by making it illegal to perform life-sustaining activities in public. These measures prohibit activities such as sleeping/camping, eating, sitting, and begging in public spaces, usually including criminal penalties for violating these laws.

In a nation with the highest worldwide rate of incarceration of its citizens, this means increased profits for the corporate owned prison industry.¹⁹ Treated as criminals by the police for their desperate efforts to keep themselves alive, the homeless, who are arguably the most vulnerable segment of the population, have more and more frequently found themselves the target of violent attacks that have resulted in injuries and in many cases death.²⁰ A report by the NCH in 2005 found that in a recent period of four years, homeless deaths had increased by 67% while non-lethal attacks increased by 281%. Living and dying in accord with the neoliberal rule of maximum economy, the homeless find themselves subject to the harshest and cruellest effects of its domestic governance. They are the disowned of the ownership society. Neoliberalism’s rationality treats criminality in a manner that departs from previous “disciplinary” (human or social science-based) analyses of crime. Here again, the criminal is subjectified as a free, autonomous, and rationally calculating subject who weighs the uncertain risk of having to pay a cost in the form of punishment against the generally more certain benefits of crime. As the story goes, Gary Becker hit upon this notion one day when he was confronted with the choice of either parking his car illegally, and thereby risking getting a ticket, or parking legally in an inconvenient spot. After carefully calculating his options he opted for the former ‘criminal’ choice. As Becker himself has pointed out, this rational choice approach to criminality fails to acknowledge any significant difference between a murder and a

ments can be accessed in PDF format at the UN-HABITAT webpage: <http://hq.unhabitat.org/content.asp?cid=3397&catid=7&ypeid=46&sub MenuId=0> (accessed April 30, 2008). I have not found an updated version of this report at the time of this writing.

¹⁶ See Phillip Thornton’s article, “More are Hungry Despite World Leaders’ Pledge,” *The Independent/UK*, October 16, 2006.

¹⁷ All statistics, facts, and figures on homelessness are taken from the National Coalition for the Homeless publications website: <http://www.nationalhomeless.org/publications/facts.htm> (accessed April 30, 2008).

¹⁸ Linda Gibbs, as quoted by Robert Kolker in his January 6, 2003 *New York* magazine article: “Home for the Holidays.”

¹⁹ See the February 29, 2008 *Washington Post* article “New High in U.S. Prison Numbers,” <http://www.washingtonpost.com/wpdyn/content/story/2008/02/28/ST2008022803016.htm> 1 (accessed April 30, 2008).

²⁰ See the press release entitled: “Hate Crimes and Violence Against Homeless People Increasing,” <http://www.nationalhomeless.org/hatecrimes/pressrelease.html> (accessed April 30, 2008).

parking offence. Or, at best, and since crime is identified as “any action that makes the individual run the risk of being condemned by a penalty” (BB, 251), the difference between committing a murder and parking illegally is nothing other than the kind of penalty one risks incurring. In its attempt to displace legal judgments in favor of economic ones, this approach to human behavior rules out any possibility for an ethical evaluation of actions that would extend beyond simply judging them as unfortunate miscalculations in light of what is expedient.

IV. Foucault and Neoliberalism Today—Three Concerns

While quite a number of scholars and critics have used Foucault’s “toolbox” to great advantage in describing and analyzing many of the same trends I have discussed above,²¹ a number of questions have been raised about the viability or effectiveness of doing so. I will briefly describe three of what I take to be the most significant concerns here as a means toward developing my own attempts to address them, albeit somewhat indirectly, in the remainder of this paper.

The first concern is that the use of the concept of neoliberalism as a descriptive term in a critical analysis of contemporary society might be “insufficiently genealogical”.²² That is, it seems to claim a bird’s-eye view of things, it tends to generalize too much, and it consequently moves too quickly in reaching conclusions. In other words, it risks bypassing the kind of patient and detailed genealogical analyses that would give us insightful descriptions of the specific local forms of power and knowledge that are to be found at work in our everyday lives. I have already gone some way towards offering empirical descriptions of contemporary experiences that reflect neoliberal governmentality at work. In the next section I will offer a brief genealogy of neoliberalism that begins by noting the specificity of Foucault’s own analysis within an examination of liberalism as the framework of intelligibility of biopolitics.

A second and closely related concern is that by focusing on neoliberalism’s economization of society and responsabilization of individuals some critics have mistakenly offered it up as a new paradigm of power that would supersede older forms just as disciplinary power is sometimes mistakenly thought to have entirely replaced

sovereign power in one great historical shift.²³ Careful readers know that Foucault warned against making this kind of mistake by indicating the complex ways in which different forms of power have co-existed and complimented one another.²⁴ One can point, for example, to the alarming explosion of U.S. prison populations and the worldwide escalation of the use of surveillance technologies as contemporary manifestations of disciplinary and panoptic forms of power. Likewise the open acknowledgment of the use of torture by the U.S. government can be recognized as one of the signal characteristics of sovereign power. In the next section I will offer examples of the presence of sovereign, disciplinary, and panoptic forms of power in neoliberal governmentality while also noting what I find to be significant differences or modifications.

A third and final concern is that Foucault’s emphasis on the care of the self and aesthetics of existence in his later works lends itself quite nicely to neoliberalism’s aim of producing free and autonomous individuals concerned with cultivating themselves in accord with various practices of the self (education, healthy lifestyle, the desire to compete, etc.).²⁵ That is, *Homo economicus* is a good example of Foucauldian self-fashioning. Consequently, one might conclude that, rather than contributing toward a critical analysis of neoliberalism, Foucault’s work on self-care and technologies of the self at best provides us with no useful tools for doing so, or worse, actually provides a kind of technical support manual for the neoliberal agenda of recoding society and its subjects. Indeed we might be mistaken to read Foucault as critical of neoliberalism at all. It could be that his sole interest in it was as a historically situated critical alternative to the biopolitical model of the welfare state. In this regard he might even have been a somewhat naive advocate of neoliberalism, for all we know. In the genealogy that follows I will give particular attention to the history of *Homo economicus* because of its central place in neoliberal governmentality. I have already described how neoliberalism encourages individuals to engage in

²¹ In addition to Wendy Brown, cited above, see for example Jeffrey T. Nealon’s *Foucault Beyond Foucault: Power and its Intensifications Since 1984* (Stanford, CA: Stanford University Press, 2008), and the work of Nikolas Rose, in particular his *Powers of Freedom: Reframing Political Thought* (Cambridge: Cambridge University Press, 1999).

²² While he does not raise the problem specifically in relation to neoliberalism, Todd May expresses a similar concern about the use of the concept of “globalization” to describe our present. See his article “Foucault Now?” in *Foucault Studies*, 3 (November 2005). Also see the last chapter, “Are we still who Foucault says we are?” in his book *The Philosophy of Foucault* (Montreal: McGill-Queen’s University Press, 2006), 132-59.

²³ Alan Milchman and Alan Rosenberg locate this problem in much of Anglo-Saxon governmentality theory [FF]. Nancy Fraser has described disciplinary power as a “Fordist mode of social regulation” that is no longer very useful for describing contemporary society. See her article “From Discipline to Flexibilization? Rereading Foucault in the Shadow of Globalization,” in *Constellations*, 10, 2 (Oxford: Blackwell Publishing, 2003), 160-71.

²⁴ During a discussion of Rousseau in his lecture of February 1, 1978 Foucault suggests: “...we should not see things as the replacement of a society of sovereignty by a society of discipline, and then of a society of discipline by a society, say, of government. In fact we have a triangle: sovereignty, discipline, and governmental management...” (STP, 107).

²⁵ Jeffrey T. Nealon’s *Foucault Beyond Foucault* offers a characterization of this prevalent but mistaken reading in which “the late Foucaultian turn to the self-creating subject and its artistic agency can only remind us of present-day American military recruiting posters (‘Become an Army of One’) or the corporate slogan of Microsoft: ‘Where would you like to go today?’” (p. 11).

self-forming practices of subjectivation through processes of social subjectification. In the last section of my paper I will discuss the possibility of recognizing and inventing other forms of subjectivation that critique and resist neoliberal subjectification.

V. A Brief Genealogy of Neo-Liberalism

I begin this section by establishing a few points for consideration. The first is that the question as to whether Foucault thought neoliberalism was a good thing or a bad thing seems to me to be misguided for two reasons. His analyses of governmentality sought, to a large extent, to analyze historical relations between power, knowledge, and subjectivity in order to better understand the present, to identify its dangers, and to perhaps locate possible opportunities for critical resistance. The judgment "good" or "bad" is something I am sure he would have refused in this context as he consistently did in many others. In addition, if it can be argued that the way many of us think, act, and speak has, over the past couple of decades, become increasingly shaped in a manner consistent with the articulations of neoliberal governmentality, this is nothing Foucault could have anticipated nearly twenty-five years ago. We cannot know what he would have thought of the actuality of our present. What we do know is that Foucault found neoliberalism important enough to examine and discuss it in his 1978-79 lectures at far greater length than he had originally planned (BB, 185). Although neoliberalism has frequently been used as one of the "tools" Foucault offers, perhaps it is not always the case that enough attention is given to his own treatment of it. We should bear in mind that his discussion of it occurs within the context of an analysis of liberalism as "the general framework" or "condition of intelligibility" of biopolitics (BB, 327-8). In fact, at the end of his first lecture on January 10th, he suggested that: "only when we know what this governmental regime called liberalism was, will we be able to grasp what biopolitics is" (BB, 18). Considering this analytical framework we might pause for a moment over the "neo" of neoliberalism. A genealogical approach should perhaps first seek to establish its possible links with some of the older disciplinary and panoptic forms of power described by Foucault as constituting the history of our present.

Many of the contemporary practices that can be defined in terms of neoliberalism have historical precedents that we can locate in Foucault's archaeological/genealogical analyses. It is hard to argue with those who would point to today's exploding prison populations, the use of prison labor and the training of both students and prisoners in "entrepreneurialism",²⁶ the replacement of welfare with

workfare, the pervasive use of surveillance, training, and testing, etc. as instances of the contemporary manifestation of something that appears to be disciplinary power. For example, as was true in "the great confinement" described by Foucault in *Madness and Civilization*,²⁷ the present incarceration of unprecedented numbers of the population in the U.S. is not simply a negative act of exclusion aimed at protecting and preserving a pre-given social order. Rather, it is a positive means of producing certain kinds of subjects in accord with a certain biopolitical apparatus implemented by the police (understood here in the broad governmental sense of the term used during the eighteenth century as outlined by Foucault)²⁸ with the aim of producing a certain kind of social order. What may be unique about neoliberal forms of punishment is that they recognize a certain continuum between those subjects who are incarcerated and those who are not. Whereas the Hôpital Général described by Foucault served to constitute a division between normal and pathological subjects, neoliberal governmentality aims toward producing something like a graduated social plane by constituting *all* subjects as "equally unequal". Incarcerated or not, all neoliberal subjects are presumed "equal" and "free". Social divisions no doubt exist, indeed many of them (such as economic disparity) have been increasing steadily, but as we have seen, neoliberalism attributes those divisions to failures of *individual* choice and responsibility. When Foucault discusses the neoliberal conception of criminality, he concludes, "there is an anthropological erasure of the criminal" and "what appears on the horizon of this kind of analysis is not at the ideal or project of an exhaustively disciplinary society in which the legal network hemming in individuals is taken over and extended internally by, let's say, normative mechanisms" (BB, 258-9). In contrast to traditional forms of disciplinary power, these contemporary instances posit a continuum that *begins* with a conception of individuals as *already* rationally calculating, individualized atoms of self-interest. Once those principles are incorporated within governing institutions, social relations, academic disciplines, the workplace, and professional organizational policies, individuals are encouraged and compelled to fashion themselves (their practices, understanding, and manner of speaking) according to its rules, often out of practical necessity. On the other hand it seems that a number of Foucault's descriptions of nineteenth-century society and government find echoes in contemporary society, such as docile bodies being subject to continuous training and judgment, or the poor being criminalized

²⁶ See, for example, the transcript of the PBS News Hour report aired January 15, 2007 on the NIFTY programs at a Providence, Rhode Island high school and the Rikers Island jail facility.

http://www.pbs.org/newshour/bb/education/jan-june07/entrepreneurs_01-15.html (accessed April 30, 2008).

²⁷ Michel Foucault, *Madness and Civilization: A History of Insanity in the Age of Reason*, translated by Richard Howard (New York: Random House, 1965), 38-64.

²⁸ Michel Foucault, "The Political Technology of Individuals," in Luther H. Martin, Huck Gutman, and Patrick H. Hutton (eds.), *Technologies of the Self* (Amherst, MA: The University of Massachusetts Press, 1988), 145-62. Henceforth, *PTI*, with page numbers given in the text. Foucault explains here that: "The police govern not by the law but by a specific, a permanent, and a positive intervention in the behavior of individuals" (p. 159).

and cast out of the cities. It does not require much imagination to hear in Bourdieu's description of today's entrepreneurial work culture, quoted above, a repetition of Foucault's description of one of the effects of panopticism:

The efficiency of power, its constraining force have, in a sense, passed over to the other side—to the side of its surface of application. He who is subjected to a field of visibility, and who knows it, assumes responsibility for the constraints of power; he makes them play spontaneously upon himself; he inscribes in himself the power relation in which he simultaneously plays both roles; he becomes the principle of his own subjection.²⁹

We find significant precedents such as this one in the past, but, as Bourdieu makes clear, the new values promulgated in this contemporary form of panopticism are exclusively entrepreneurial ones. We find here no references to traditional Christian morality or descriptions of "idleness" as a sin. If the panopticon as described by Foucault was a vast experiment using various techniques in order to find what worked best, today's corporate work environments may very well be one of a number of practical applications of its results. If one of the effects of panopticism is to produce *free* subjects, then the critical issue is not so much a matter of liberating individuals from this or that constraint, but rather examining the apparatuses within which subjects are conditioned and constrained as *free* subjects. The workers described by Bourdieu, the homeless who are treated as both "clients" and criminals, those who are poor due to their own "mismanagement" and those citizens described by Brown who can strategize for themselves among available options but play no role in determining those options—they are all free. But their freedom is shaped, conditioned, and constrained within a form of subjectification characterized by increasing competition and social insecurity. It is an apparatus that produces only certain kinds of freedom understood in terms of a specific notion of self-interest, while effectively preempting other possible kinds of freedom and forms of self-interest (including various collective, communal, and public forms of self-interest) that necessarily appear as impolitic, unprofitable, inexpedient and the like. Rather than representing a new paradigm of power, neoliberalism perhaps constitutes a sovereign-disciplinary-governmental triangle of power.

Turning again to *Homo economicus*, who might best be described as the subject who would be "the principle of his own subjection" because of the conditions of his environment, we recognize that this prescribed form of subjectivity also has its historical precedents within the biopolitics of liberalism. In his article "The Ethology of *Homo Economicus*" Joseph Persky traces the original use of the term *Homo economicus*

to the late nineteenth century.³⁰ There he locates the term in a series of critical responses to John Stuart Mill's work on political economy, in particular his 1836 essay "On the Definition of Political Economy; and on the Method of Investigation Proper to It."³¹ There and in later writings Mill made use of an abstract hypothetical human subject useful for the purpose of economic analysis. Mill himself never used the term, and so "economic man" first came into being as a satirical rebuke to what was caricatured as Mill's "money-making animal," an imaginary being who was only interested in the selfish accumulation of wealth. In fairness to Mill, his actual description of this self-interested man also included the desire for luxury, leisure, and procreation. Interestingly, the problem of labor didn't enter into this picture except insofar as he was concerned that the presumably natural desire to avoid work and give one's self over to costly indulgences threatened to hinder the accumulation of wealth. Rational calculation, a central feature of today's *Homo economicus* was, of course, also absent. Persky notes that Mill's approach was basically *laissez-faire* but that he also introduced ownership and profit sharing as motivating factors. While he sometimes treated *Homo economicus* as something of a natural being, he was also aware that the constitution of individual preferences, passions, and the overall development of character needed to be studied through a "political ethology." As Persky explains:

Strictly speaking, Mill viewed efforts to analyze the development of character as the proper task of ethology, a science he placed logically subsequent to elementary psychology. Ethology, according to Mill, was that science 'which determines the kind of character produced in conformity to those general laws [of psychology], by any set of circumstances, physical and moral'. In terms of Mill's grander scheme of sciences and arts, ethology (like political economy) produced *axiomata media*, or middle-level theory—logically precise deductions from admittedly shaky first principles that then could be applied in useful arts. Thus, the art corresponding to ethology was 'education', or what today might be called 'character building' (*EHE*, 226).

While this brief example is no substitute for a thorough genealogy of *Homo economicus*, Mill's interest in this "art" of "character building" is a provocative indication that while the political rationality of classical liberalism may have appealed to "nature" and the "human propensity to 'truck and barter'" (*E*, 41), it was also concerned with the governmental problem of the conduct of conduct.³² What Persky is describ-

²⁹ Michel Foucault, *Discipline and Punish: The Birth of the Prison*, translated by Alan Sheridan (New York: Random House, 1979), 202-3.

³⁰ Joseph Persky, "The Ethology of *Homo Economicus*," *Journal of Economic Perspectives*. 9, 2 (Spring 1995), 221-31. Henceforth, *EHE*, with page numbers given in the text.

³¹ John Stuart Mill, "On the Definition of Political Economy; and on the Method of Investigation Proper to It," in *Collected Works*. vol. 4 (Toronto: University of Toronto Press, 1967), 120-64.

³² Here I am in at least partial disagreement with Wendy Brown when she suggests that, in

ing in this article is Mill's interest in a technology of subjectification. Specifically, he finds in Mill an inquiry into the techniques made available through various forms of scientific knowledge for producing a certain form of subjectivity with a certain *ethos* to serve the interests of political economy. *Homo economicus*, in other words, is historically introduced as a modern subject of governmentality, a biopolitical subject of power/knowledge.

Foucault describes the classical version of *Homo economicus* as "the man of exchange". He appears as a figure that must be analyzed in terms of a utilitarian theory of needs. His manner of behavior and mode of being must be broken down and analyzed in terms of his needs, which lead him to engage in a utilitarian process of exchange (BB, 224). By contrast, in neoliberalism, *Homo economicus* is no longer a partner in exchange but instead is fashioned as "an entrepreneur and an entrepreneur of himself." As such he is his *own* capital, his *own* producer, and the source of his *own* earnings. Even in terms of consumption (and here again Foucault refers directly to Becker) the neoliberal *Homo economicus* is recognized as a producer of his *own* satisfaction. In place of all the old sociological analyses of mass consumerism and consumer society, consumption itself becomes an entrepreneurial activity analyzable solely in terms of the individual subject who is now recognized as one among many productive enterprise-units (BB, 225). Insofar as the enterprising individual is not directly subject to disciplinary and normalizing forms of power, neoliberalism is more "tolerant" of difference. Instead, society is to be arranged such that it can be divided or broken down not in terms of the "grain" of individuals, but according to the "grain" of enterprises.

Foucault demonstrated that, from its origins, biopolitics has constituted modern subjects in empirically verifiable scientific and economic terms. *Discipline and Punish* provides detailed accounts of the training of individuals with imperatives of expedience, efficiency, and economy. It also illustrates the importance of constant surveillance and examination as the subject moves from one institutional space to another. As I have illustrated above, Foucault's analysis of panopticism describes how the disciplined biopolitical subject is made to internalize particular forms of responsibility for him- or herself through practices of subjectivation. One of the tasks required for producing genealogies of neoliberalism and *Homo economicus* is to identify the specific forms of knowledge that both inform and are produced by neoliberal practices, both individual and institutional. If the historical forms of disciplinary

power and subjectivation made use of the human and social sciences and related disciplines (psychology, anthropology, political science, pedagogy, etc.), a study must be made into the forms of knowledge that presumably have either taken their place or infiltrated them. The most obvious development in this regard would be the extent to which rational choice theory, the lynchpin of contemporary *Homo economicus*, has made its way into the various disciplines from micro-economics to sociology, political science, and philosophy. As Foucault put it in his last lecture from 1979:

Hence there is a new problem, the transition to a new form of rationality to which the regulation of government is pegged. It is now a matter not of modeling government on the rationality of the individual sovereign who can say 'me, the state', [but] on the rationality of those who are governed as economic subjects and, more generally, as subjects of interest in the most general sense of the term [BB, 312].

VI. Ethics and Critical Resistance

[T]here is no first or final point of resistance to political power other than in the relationship of self to self.³³

Whether neoliberalism will ultimately be viewed as having presented a radically new form of governmentality or just a set of variations on classical liberalism, we can certainly recognize that there are a number of characteristics in contemporary practices that are new in the history of governmentality, a number of which I've already discussed. Another one of these outstanding features is the extent to which the imposition of market values has pushed towards the evisceration of any autonomy that may previously have existed among economic, political, legal, and moral discourses, institutions, and practices. Foucault notes, for example, that in the sixteenth century jurists were able to posit the law in a critical relation to the reason of state in order to put a check on the sovereign power of the king. By contrast, neoliberalism, at least in its most utopian formulations, is the dream of a perfectly limitless (as opposed perhaps to totalizing) and all-encompassing (as opposed to exclusionary and normalizing) form of governance that would effectively rule out all challenge or opposition. This seems to be the kind of thing that Margaret Thatcher was dreaming about when she claimed that there is "no alternative".³⁴ Such formulations of what might be called "hyper-capitalism" seem to lend themselves to certain traditional forms of criticism. However, critical analyses that produce a totalizing conception of

contrast to classical economic liberalism, "neoliberalism does not conceive of either the market itself or rational economic behavior as purely natural" (E, 41). She is right about neoliberalism but I am not sure this feature distinguishes it from classical liberalism. First and most importantly, liberalism is explicitly an *art* of governing concerned with the conduct of conduct despite its appeals to "nature". Second, neoliberalism also has the effect of making competition among individuals appear "natural" or a matter of "common sense" as a result of its active interventions in the social realm.

³³ Michel Foucault, *The Hermeneutics of the Subject: Lectures at the Collège de France 1981-82*, translated by Graham Burchell, edited by Frédéric Gros (New York: Palgrave MacMillan, 2005), 252. Henceforth, *THS*, with page numbers given in the text.

³⁴ This comment was made at a press conference for American correspondents in No. 10 Downing Street in London on June 25, 1980.

power and domination risk the same danger, noted above, of overlooking the sometimes subtle and complex formations of power and knowledge that can be revealed through genealogical analyses of local practices. Important for any genealogical analysis is the recognition that, while there is no “outside” in relation to power, resistance and power are coterminous, fluid, and, except in instances of domination, reversible. There is an echo of this formulation in Foucault’s understanding of governmentality as “the conduct of conduct”. Governmentality is not a matter of a dominant force having direct control over the conduct of individuals; rather, it is a matter of trying to determine the conditions within or out of which individuals are able to freely conduct themselves. And we can see how this is especially true in the case of neoliberalism insofar as it is society itself and not the individual that is the direct object of power. Foucault provides examples of this in “The Subject and Power”, in which he discussed a number of struggles of resistance that have developed over the past few years such as “opposition to the power of men over women, of parents over children, of psychiatry over the mentally ill, of medicine over the population, of administration over the ways people live”.³⁵ Despite their diversity, these struggles were significant for Foucault because they share a set of common points that allow us to recognize them as forms of resistance to governmentality, that is, “critique”. Through the examples he uses Foucault notes the local and immediate nature of resistance. These oppositional struggles focus on the effects of power experienced by those individuals who are immediately subject to them. Despite the fact that these are local, anarchistic forms of resistance, Foucault points out that they are not necessarily limited to one place but intersect with struggles going on elsewhere. Of greatest importance is the fact that these struggles are critical responses to contemporary forms of governmentality, specifically the administrative techniques of subjectification used to shape individuals in terms of their free conduct.³⁶ These struggles question the status of the individual in relation to community life, in terms of the forms of knowledge and instruments of judgment used to determine the “truth” of individuals, and in relation to the obfuscation of the real differences that make individuals irreducibly individual beings.

Tying all of these modes of resistance together is the question “Who are we?” While some might be concerned about exactly *who* this *we* is suggested by Foucault, both here and in his discussions of Kant and enlightenment, I think the question is in some ways its own answer. In other words, it is meant to remain an ongoing critical question that can never be definitively answered, or, as John Rajchman has suggested, it is a question that can only be answered by those who ask it and through

the process of asking it. In his introduction to *The Politics of Truth* he writes:

The ‘we’ always comes after, emerging only through the on-going light its activities shed on the habits and practices through which people come to govern themselves—and so see themselves and one another. Indeed in this lies precisely the originality of the critical attitude, its singular sort of universality, its distinctive relation to ‘today’—to ‘now’, ‘the present’, *l’actuel*.³⁷

This “critical attitude” that Foucault repeatedly refers to in all of his discussions of Kant from the 1970’s and 1980’s is inseparable from both his analysis of governmentality and his discussions of ethics and the history of the experience of the relationship between the subject and truth. What fascinated Foucault about the “care of the self” he discovered in Greek and Roman ethics was the “spiritual” relationship that existed between the subject and truth. In order to gain access to the truth, that is, in order to acquire the “right” to the truth, individuals had to take care of themselves by engaging in certain self-transformative practices or ascetic exercises. Here we find critical and resistant forms of subjectivation where, rather than objectifying themselves within a given discourse of power/knowledge, individuals engaged in practices of freedom that allowed them to engage in ethical *parrhesia* or speak truth to power. In modernity, however, following what Foucault identified as “the Cartesian moment” the principle “take care of yourself” has been replaced by the imperative to “know yourself” [*THS*, 1 - 24]. In contemporary life that which gives an individual access to the truth is knowledge and knowledge alone, including knowledge of one’s self. In this context knowledge of the self is not something produced through the work individuals perform on themselves, rather it is something given through disciplines such as biology, medicine, and the social sciences. These modern forms of knowledge, of course, become crucial to the emerging biopolitical forms of governmentality. Whereas individuals were once urged to take care of themselves by using self-reflexive ethical techniques to give form to their freedom, modern biopolitics ensures that individuals are already taken care of in terms of biological and economic forms of knowledge and practices. As Edward F. McGushin puts it in his book *Foucault’s Askesis: An Introduction to the Philosophical Life*,

Power functions by investing, defining, and caring for the body understood as a bioeconomic entity. The operation of biopower is to define the freedom and truth of the individual in economic and biological terms. Reason is given the task of comprehending the body in these terms and setting the conditions within which it can be free. ...The formation of the disciplines marks the moment where *askesis* itself was absorbed within biopolitics.³⁸

³⁵ Michel Foucault, “The Subject and Power,” in Hubert L. Dreyfus and Paul Rabinow, *Michel Foucault: Beyond Structuralism and Hermeneutics* (Chicago, IL: University of Chicago Press, 1983), 211. Henceforth, *TSP*, with page numbers given in the text.

³⁶ As Foucault put it: “Power is exercised only over free subjects, and only insofar as they are free” (*TSP*, 221).

³⁷ John Rajchman, “Introduction: Enlightenment Today,” in Sylvère Lotringer (ed.) *The Politics of Truth* (Los Angeles, CA: Semiotext(e), 2007), 14-5.

³⁸ Edward F. McGushin, *Foucault’s Askesis: An Introduction to the Philosophical Life* (Evanston,

Foucault explicitly identified critique, not as a transcendental form of judgment that would subsume particulars under a general rule, but as a specifically modern “attitude” that can be traced historically as the constant companion of pastoral power and governmentality. As Judith Butler points out in her article “What is Critique? An Essay on Foucault’s Virtue”,³⁹ critique is an attitude, distinct from judgment, precisely because it expresses a skeptical or questioning approach to the rules and rationalities that serve as the basis for judgment within a particular form of governance. From its earliest formations, Foucault tells us, the art of government has always relied upon certain relations to truth: truth as dogma, truth as an individualizing knowledge of individuals, and truth as a reflective technique comprising general rules, particular knowledge, precepts, methods of examination, confessions, interviews, etc. And while critique has at times played a role *within* the art of government itself, as we’ve seen in the case of both liberalism and neoliberalism, it has also made possible what Foucault calls “the art of not being governed, or better, the art of not being governed like that and at that cost” (WC, 45). Critique is neither a form of abstract theoretical judgment nor a matter of outright rejection or condemnation of specific forms of governance. Rather it is a practical and agonistic engagement, re-engagement, or disengagement with the rationalities and practices that have led one to become a certain kind of subject. In his essay “What is Enlightenment?” Foucault suggests that this modern attitude is a voluntary choice made by certain people, a way of acting and behaving that at one and the same time marks a relation of belonging and presents itself as a task.⁴⁰ Its task amounts to a “historical investigation into the events that have led us to constitute ourselves and to recognize ourselves as subjects of what we are doing, thinking, [and] saying” (WE, 125). But how can we distinguish the kinds of resistance Foucault was interested in from the endless calls to “do your own thing” or “be all you can be” that stream forth in every direction from political campaigns to commercial advertising? How is it, to return to the last of the three concerns raised above, that Foucault does not simply lend technical support to neoliberal forms of subjectivation? On the one hand, we can distinguish critical acts of resistance and ethical self-fashioning from what Foucault called “the Californian cult of the self” (OGE, 245), that is, the fascination with techniques designed to assist in discovering one’s “true” or “authentic” self, or the merely “cosmetic” forms of rebellion served up for daily consumption and enjoyment. On the other hand we might also be careful not to dismiss forms of self-fashioning as “merely”

aesthetic. As Timothy O’Leary points out in his book *Foucault and the Art of Ethics*, Foucault’s notion of an aesthetics of existence countered the modern conception of art as a singular realm that is necessarily autonomous from the social, political, and ethical realms, at least as it pertained to his question of why it is that a lamp or a house can be a work of art, but not a life. O’Leary writes:

Foucault is less interested in the critical power of art, than in the ‘artistic’ or ‘plastic’ power of critique. For Foucault, not only do no special advantages accrue from the autonomy of the aesthetic, but this autonomy unnecessarily restricts our possibilities for self-constitution. Hence, not only is Foucault aware of the specific nature of aesthetics after Kant, he is obviously hostile to it.⁴¹

What O’Leary rightly identifies here is Foucault’s interest in an aesthetics of existence that specifically stands in a critical but immanent relation to the ways in which our individuality is given to us in advance through ordered practices and forms of knowledge that determine the truth about us. The issue is not a matter of how we might distinguish “authentic” forms of resistance (whatever that might mean) from “merely” aesthetic ones. Rather it is a matter of investigating whether or not the practices we engage in either reinforce or resist the manner in which our freedom—how we think, act, and speak—has been governed in ways that are limiting and intolerable. In short, critical resistance offers possibilities for an experience of de-subjectification. Specifically in relation to neoliberal forms of governmentality, this would involve resisting, avoiding, countering or opposing not only the ways in which we’ve been encouraged to be little more than self-interested subjects of rational choice (to the exclusion of other ways of being and often at the expense of those “irresponsible” others who have “chosen” not to amass adequate amounts of human capital), but also the ways in which our social environments, institutions, communities, work places, and forms of political engagement have been reshaped in order to foster the production of *Homo economicus*. Endless examples of this kind of work can be found in many locations, from the international anti-globalization movement to local community organizing.

It may be too early to determine the viability of neoliberalism as a form of governmentality and “grid of intelligibility” for thinking about our present, particularly as it continues to coexist with other more disciplinary and normalizing forms of power/knowledge/subjectivity. Certainly it seems to have expanded and become more prevalent than when Foucault analyzed it in the late 1970’s. In any case, the proof will be in our practices, that is, a better understanding will emerge by attending to our everyday activities, what we say and how we think, our commitments and obligations as well as the kinds of truths about ourselves we rely upon and reinforce in the process of doing so. Critical attention should continue to be paid to how

⁴¹ Timothy O’Leary, *Foucault and the Art of Ethics* (London: Continuum, 2002), 129.

IL: Northwestern University Press, 2007), 239.

³⁹ *The Political: Readings in Continental Philosophy* edited by David Ingram (London: Basil Blackwell, 2002).

⁴⁰ Michel Foucault, “What is Enlightenment?” in *The Politics of Truth*, edited by Sylvère Lotringer (Los Angeles, CA: Semiotext(e), 1997), 113. Henceforth, *WE*, with page numbers given in the text.

neoliberal forms of governmentality continue to reinforce and expand *Homo economicus* as a form of subjectivation that can be directly linked to greater wealth disparity and increasing poverty, environmental degradation, the evaluation and legitimation of governance through market values alone, growing rates of incarceration, the increasing intervention of private corporate values and interests into our everyday lives, the disappearance of the public square and an increase in the political disenfranchisement of citizens. All of this might best be attended to while bearing in mind Foucault’s cautionary suggestion that “People know what they do; they frequently know why they do what they do; but what they don’t know is what what they do does.”⁴²

⁴² Hubert L. Dreyfus and Paul Rabinow, “Power and Truth” in *Michel Foucault: Beyond Structuralism and Hermeneutics* (Chicago, IL: The University of Chicago Press, 1983), 187.